

TENTATIVE RULINGS

June 15, 2026

	Case Name	Tentative
101	2023-01355797 Arie vs. Ford Motor Company	Motion for Summary Judgment and/or Adjudication No tentative issued.
102	2024-01388052 Stachel vs. Ford Motor Company	Motion for Summary Judgment and/or Adjudication The Court denies Defendant Ford Motor Company's Motion for summary judgment or alternatively adjudication of the three remaining claims in Plaintiff Kevin Stachel's First Amended Complaint (FAC). <u>Reply Separate Statement</u> Defendant's reply includes a separate statement "response". California Rules of Court, rule 3.1350 does not contemplate a reply separate statement. Defendants did not obtain prior permission from the Court to file the additional separate statement. (See ROA 170.) Accordingly, the document was not considered. <u>Evidentiary Objections</u> Defendant objects to the additional separate statement of facts. Objection nos. 1-29 are overruled. To preserve an objection to evidence, the party must object to the evidence itself rather than merely to separate statements of fact or to procedural aspects such as a separate statement in opposition to summary judgment. (See <i>e.g. Hodjat v. State Farm Mutual Automobile Ins. Co.</i> (2012) 211 Cal.App.4th 1, 8; Rule of Court 3.1354(b).) The Court overrules each objection to Counsel Yu and Plaintiff's declarations. The Court notes that Defendant uses the same type of repair history documents introduced through its attorneys, without authentication or a business records exception delineated. (See Liu, Esq. Decl., ¶16, Ex. 5: "Attached hereto as Exhibit 5 is a true and correct copy of the Standard Claims List reflecting repairs to Plaintiff's FMC_STACHEL000012-000015.") Defendant does not argue that the records are not what Plaintiff purports them be from the authorized dealership or that it did not receive them in discovery. The Court considers both sides records from the dealership of the vehicle's repair history. Defendant objects to evidence of post-warranty repairs as irrelevant. But they are relevant to show outstanding nonconformities at the time the warranty ended. <u>Legal Standard</u> "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (<i>Ibid.</i>) "A